

HOUSE No. 1521

The Commonwealth of Massachusetts

PRESENTED BY:

Kevin G. Honan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring continued rights for public housing residents.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 1521

By Representative Honan of Boston, a petition (accompanied by bill, House, No. 1521) of Kevin G. Honan relative to the rights for public housing residents. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1340 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring continued rights for public housing residents.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 34 of chapter 121B of the Massachusetts General Laws is hereby amended by
2 adding the following paragraph:-

3 “Notwithstanding any provision in this section, the tenants of projects transferred under
4 this section shall, at a minimum, maintain the rights as provided under the provisions of the
5 federal, state, and local subsidy programs originally applicable to the project including tenant
6 contribution, lease terms, eviction, right to return, grievance, resident participation, preference in
7 hiring, and privacy rights, except as may be required to secure financing necessary for the
8 feasibility of the project, or to meet associated programmatic eligibility requirements subject to
9 clause (ii) in the following paragraph after notice to affected tenants with an opportunity to
10 comment. Provided further, the redevelopment shall not be the basis for re-screening of existing

11 tenants or termination or reduction of assistance or eviction of any tenant in a subject property,
12 and such a tenant shall not be considered a new admission for any purpose, including compliance
13 with any income targeting requirements. Provided further, such projects under this section shall
14 have at least the same number of low rent housing as the number of low rent housing in the
15 existing project.

16 Provided further, the requirements for such projects under this section shall be
17 implemented through contracts, use agreements, regulations, or other means, as determined by
18 the department, so long as they remain consistent with this section and all local, state and federal
19 subsidy programs applicable to the project pursuant to this section and delineate: (i) the roles of
20 the housing authority and other agencies in monitoring and enforcing compliance, including
21 tracking temporary and permanent displacement; (ii) how the housing authority will rehouse
22 tenants so there is no displacement from affordable housing programs operated by the housing
23 authority, and (iii) how tenants will be provided with technical assistance to allow them
24 meaningful input into the development of the proposed project; provided further the benefits of
25 any use agreement shall inure to any tenant who occupied the project at time of redevelopment or
26 to present or future tenants or applicants of the project, who shall have the right to enforce the
27 same as third-party beneficiaries provided that nothing in this section is intended to create a
28 separate or new administrative process of appeal or review for any grievance governed by the
29 lease of any tenant.

30 Provided further, that there shall be an opportunity for comment from tenants of such
31 projects to be proposed under this section and an opportunity for public comment to the owners,
32 controlled entities, designated private entities, or public housing authorities responsible for such
33 projects with adequate notice.”